

discover information that will either support or refute the multiple allegations contained in their complaint and cross-complaint. Plaintiff chose to assert these allegations. Now, he is required to produce information that provides information relevant to them. To permit Plaintiff to escape his requirement to provide answers to validate each of the facts that support many of the sixteen causes of action in his complaint would contravene the purpose of discovery, which is to eliminate the “sporting theory of litigation and eliminate surprise at trial.” It would also provide Plaintiff an unfair advantage by allowing him to make allegations without an attendant obligation to produce information that support these allegations.

After reviewing the papers submitted by Counsel, and applying the applicable statutory and decisional authority, the Court finds good cause to deny this motion.

Ruling

1. Plaintiff’s Motion for Protective order is **denied**.
2. Plaintiff is ordered to produce verified answers to each of the 167 special interrogatories no later than fourteen (14) days from the date of service of this order.
3. Plaintiff’s request for sanctions is denied. Each Party shall pay their own attorney’s fees and costs in prosecuting and defending against this Motion.

Defendants’ counsel is ordered to prepare a proposed order that conforms to this tentative ruling no later than five (5) days from the date of this hearing and e-file with the Court. A copy of the tentative ruling shall be attached to the proposed order.

**Law & Motion
Add On**

20. 9:00 AM CASE NUMBER: C24-01054
CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP
***HEARING ON MOTION IN RE: SEAL UNREDACTED MOTION FOR SUMMARY ADJUDICATION**
FILED BY: SLIVER'S, LLC
TENTATIVE RULING:

The hearing on this motion is continued to May 6, 2026 at 9:00 a.m. No appearance is required on April 22, 2026.

21. 9:00 AM CASE NUMBER: C24-01054
CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP
***HEARING ON MOTION IN RE: SEAL DEFENDANTS' UN-REDACTED MOTION FOR SUMMARY JUDGMENT (ADVANCED FROM 8/19/26)**
FILED BY: SLIVER'S, LLC
TENTATIVE RULING:

The hearing on this motion is continued to May 6, 2026 at 9:00 a.m. No appearance is required on April 22, 2026.

Courtroom Clerk's Session
Add On 2

22. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trials the hearing on the demurrer calendared for Line 23. The Parties are ordered to appear via zoom. If the tentative ruling for line 23 is not contested, then no appearance is required on April 22, 2026 and this CMC is continued to October 20, 2026 at 8:30 a.m. The Parties are ordered to file a case management conference statement and to appear via Zoom.

Law & Motion
Add On 2

23. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON

HEARING ON DEMURRER TO: RE FIRST AMENDED VERIFIED PETITION FOR WRIT OF MANDATE

FILED BY:

TENTATIVE RULING:

Before the Court is a demurrer filed by real parties in interest KB Home South Bay, Inc. and Trumark Homes to the first amended verified petition for writ of mandate. Respondent City of San Ramon filed and served a joinder in the demurrer by the real parties in interest on January 27, 2026, and the hearing on the joinder was set for August 12, 2026. The Court hereby **advances** the hearing on the City's joinder to be heard concurrently with the demurrer. For the reasons set forth, the demurrer by real parties in interest and the joinder by Respondent City motion are **overruled**.

Background

In the operative first amended verified petition for writ of mandate ("FAP"), petitioner Brian Swanson, AIPC, challenges approvals by the Planning Commission for the City of San Ramon of amendments regarding amendments to two development projects. First, on October 21, 2025, the Planning Commission adopted Resolution Number 12-25 to approve applications by Trumark for a Development Plan Amendment (DPA 2025-0005) and Minor Exception (MX 2025-0003) for the Bishop Ranch 11 ("BR-11") Project. (FAP, ¶¶ 1, 25, Exh. A-1.) Second, on November 4, 2025, the Planning Commission adopted Resolution Number 14-25 to approve applications by KB Home for a Development Plan Amendment (DPA 2025-0007) and Minor Exception (MX 2025-0005) for the